

M P Lakshmanan vs Smt S Laxmi on 7 September, 2010

Bench: K.L.Manjunath, B.Manohar

IN THE HIGH COURT OF KARNATAKA AT BANGALORuE'...:"'E._V

DATED THIS THE 7"' DAY OF SEPTEMBER 2o::aEf..' ,;;..'__f

PRESENT

AND

THE HON'BLE MR. JUSTICE M AtN3U~NjAT;4E.1;

THE HON'BLE MR. 3USTIC_E B."M_A':-1oHAVR7 2

MISCELLANEOUS FIRST APPEI\L<.[.._§().1032/'~2C'({}\$5 (MC)

BETWEEN:

MP. Lakshmanan S/0 M.P.KaraVr_1v} '»

Aged about 71 years,
R/o Prema Niwas, " t '
(Chatta House) .- ..
Thulechery, Civii Station, »
P.O.KannUr~2_ _ " "*I;»._

Kerala State.' '

(By Sri. P.H.
AND: % A V
Saidvti-S. L'a.)Emi"-ED/ozBhojeg"oWCia,

Aged 8b0EJ_t 48 ya:--aVrS--,. _
R/0 Ki_1a'\,frU'nr}i'S.a Quarters,

OzhayilBhaga'rr3\$;Dharmadam Viuage
, 'Te.lIiCherry_ TalU.!<., tK_3nnur District,
71j}<era!a State. =

4_VaVfaprasad, Advocate)

Appellant

Respondent

This Miscellaneous First Appeal is filed under Sectioni._28_Vof

the Hindu Marriage Act, against the judgment and

18.10.2008, passed in M.C.l\lo.33/2006 (old No.M.c.,.i2/::00'3i)'ldo-2 ' the file of the Civil Judge (Sr.Dn.),, Krishnarajapet,-idisrning 2''

the petition filed under Section 11 of Hindu f

This Miscellaneous First Appea_l'coming..up for"A'dAvnjvi«s.siVo.:fi on

this day, l(.L. MANJUNATH 3., deliyergd the foiloimrig.

The legality passed by the

Civil Judge (Sr.D15.),,:_'"K;.ii...';'"Pet::'i:%iVvs'.ll?lgait' 'l\lo. 2/2003 and later

No.M.C. 33/;;'00'?5'2:is'2'teiled in question by the

appellant. VzTh'o.ugh' listed for admission, by

consent, we ,have4"'he_:ard..the".leé.rned counsel appearing for both

thfeVmrtielslion---:merits.Ax'l"h'e"appellant was the petitioner before

thelltourt »v44VlH..e"filed the petition under section--11 of the

Ma_rriage.'A'e.t'lV;to dissolve the marriage alleged to have

-ii.l.tja.!<en.,,place 29.9.2002 and registered on 30.9.2002 before

the. Sti_be.il:\$eg~istrar, KR. Pet as void.

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2. According to the petition averments, the petitioner is a widower and was in defence and after retirement, he is running

an oil miii and getting pension. According to him, he lostsphis

wife about 2 '1/2 years back and he has two sons and

Out of the 3 chidren, two of them are married a,n_d?"t.he:.Af,ast son

is studying. According to him, the re;spoer'_1,d'e,n't._,w'a's

his oil mili as a worker on daily wages for'---the iast,(\$~?¥.?',.ye'arsi*.'. "AsV"a,

she was in poor condition, she repre"sented to"the'*petit'i'oner that she is an orphan having no siipport,'th"ere_for'e.in order to support the respondent, he submitted the pension

sanctioning respondent as a person

entitled to after his demise. In order

to nominate tyheeflresipondeenteasia nominee to receive the family

pension,~.f;.6o'rhibined photograph of the petitioner as well as the

respo,n'"den't-- *r"ef]:l;iji.red. Therefore a photo was taken and

V7.:°*-ViaffixedfAinyffetheg.perisifon papers. Taking advantage of the said

...7jpvh_c_ito, the respondent started threatening the petitioner stating
be exposed before his friends and relatives and
'V:.'u£.tima_tei she dominated his wife and took him to her native
'p.I,a.~:e i.e. K.R. Pet town, Mandya district with the help of Sri
63/

Krishna, Sri Devaraj and her sister Smt. Sakamrria, papers"-were
presented before the Sub-Registrar as if they
29.9.2002 as per the Hindu rites and customs
marriage registered on 30.9.2002. Afte-r'"th'e.registraAtionViofiithxeg
marriage, the respondent asserting as<V_if--.lshe i's_.A.the:
wedded wife of the petitioner dema*n_de.d to."exec:u.tev:_au°do'curnent 0'
transferring all his assets in her faévroornlvfind-»o.she began-'to abuse
him in filthy language and 'ha_lso'tt,r§i'ed l*.-i..rn. Thereafter
an attempt was ma.vd.e:b..y bavlckground of the
respondent and :.h'e" the respondent had
married to one%"'Vetnl4;ates3Ef)'a.gowda of._WG'o'palapura and out of the
said wedloclea child.was~bor_n'-.w.hich died later and that her
husband Ven_katels'hago.w'tlais working as a Manager in a hotel.
Th'e'*r.esp0:n:de;ntt iived vvit"r't----'*h'i'm for about 5 to 6 years and later
desertlirig: Venkateshgowda, shifted to Kerala and
ilgvsytarted llrving person at Palayad. According to him, both
.:%_lé\enkagteshagovwda and a person of Palayad are alive and her
'fna_rria'geVha_s not been dissolved according to law. It is also
0' 'V.his.___c'aseg;that the petitioner never lived with the respondent and
'l.eaid'.~.a family life. The respondent taking advantage of the
0/"

petitioner's sympathy and oscillating mind on account of loss of company and loneliness, tried to harass the petitioner

the action of the respondent is liable to be "

section--494 of IPC. In the circumstances; he got av!'ega'iv..A 0'

notice on 7.11.2002 for which she sent

Therefore he filed a petition for dis-sol-ution."o.f the '-ma--r'r'i'a'ge:, to 0'

declare the marriage as void,

3. The respondent :»be'fore'»~:V..the Court and contested the case.;_" S'ij3Te.'derE.iedL all al'legations made in the

petition. According to:jh_eVr., "she,: 'is.'japerrmanent resident of Kannur

district in Kerala and klireiyri/ed""t.ogether as husband and wife.

It is also herc--a_se that."siri'ce",»s~s4he was deserted and as the appellant ',n\$egle.cted tornrvaint-ain her, she filed a petition under

section-'1.2H:5 of for grant of maintenance in M.C. 35/2003

and ano_th'eVrAm'a'i'h.ten,an'ce case was filed before the Chief Judicial

VV'.--Tl;lag.istrate,'* Th-.a|.a'ss'ery in M.C. No.1/2003. According to her,

rtlhiheu"ptetiti.ro_nerV"h.as married her,_ after the death of his first wife

X

with him as husband and wife and now in order to

V dri\$(e'til'e respondent out of the family, the case has been filed

J3/' '

on false and frivolous grounds. According to her, there---i___s no

threat by her and that the marriage was not register'ed'--Vg:ovrn

account of any coercion or undue influence as contc:'n'dedsVVVb5r"the "

petitioner.

4. In order to prove the respective colntentionss.on behalf

of the petitioner, petitioner got F5';/V-1 and

another witness Sanil Kuma'r;HWas e}<anovil'il:re_d.vV;'a-s% PW~2H. "He relied

upon Ex.P1 to P7(a).V On b_eh;'a!f th\$iti,.reg.;D?_n'dent, she got herself examined as;_ "D"\}"~'s-«fell-;*;' and were marked.

5. Thetriai~.Courtfl4:'fojrmiulatedlvlllthe following points for consideration}. V

1. Wh_eVtherithe' pet'itio*ner"is entitled for a decree of n:u\$'l.lity_flofvV_marr'iag_e..under Section 11 of the Hindu _ it rr_iag.e-- _? -2 Whgatrtorrdyehrl'?

' QV6. Th'e..trial.Court after considering the evidence let in held

2.point]No.'1"«.i.ign the negative and accordingly dismissed the petition

appellant by its order dated 18.10.2008. The legality

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and correctness of the same is called in question in the present

appeal

7. We have heard Sri Ramaingam, the iearned_:' :coLi'n:se_!

the appeiiant and the Sri K. Varaprasadp the..4!ear'ned._cou'nseiVfor.'

the respondent. The main contenytsioan ofASr_i'"Rama.fi'r;.gqa,rné. beifoere

us is that the respondent has faii"ed_V1'toVV proveefihe nwarriage alleged to have been so;.érflnizes_d.""\$.betx;yéen.ythexpavrties on 29.9.2002 in order to get theArnar.ri;'ge 3o.9.2oo2. According to him, obtained by the

respondent by coe_rci.o"n;.w_avnd th're}3.t..A:a'nd by 'using undue influence

and therefore there 'marriage and the marriage aueged to have"'~b_eeen t'a_k.'en. has to be deciated as void. Ac.cordingy,.t\$oVhci.m, th'q,..triVVai Court did not consider the evidence

Ietrin On account of the wrong appreciation of

the etyi.de.nVce." :t\$ne Court has rejected the case of the

VV'.;<ya;3peEiant."*Therefore he requests the Court to re~appreciate the

and toset aside the order passed by the trial Court.

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8. Per contra, the learned counsel for the respondent contends that when the appellant has approached the court stating that the marriage solemnized between the respondent is null and void and that the marriage was registered if on 30.9.2002, out of coercion or threat influence, the burden is heavy on the appellant the same. Since the appellant has failed to discharge the burden, the trial Court is justified in dismissing his application. Therefore he requests the Court to dismiss his application. The trial Court is justified in dismissing the petition filed by the appellant under section 11 of the Hindu Marriage Act, 1955.

the Hindu Marriage Act can be pressed into service if the appellant contravenes any one of clauses (i), (ii), (iii) or (iv) of Section 5 of the Hindu Marriage Act. Therefore it is suggested for us to extract the provisions of Section 5 of the Hindu Marriage Act.

(V)

"5. Conditions for a Hindu marriage:- A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:-

- (i)
- (ii)
- (iii)

neither party has a spouse living at the time of the marriage;

at the time of the marriage, 'neither party :- V
(a) is incapable of giving a valid consent, to V

it in consequence of V, u-nso-iJnd,nessof-mi.rid;
or (b) though «-..}a;JéA3_b|e'irioiffggiyiingg a valid
consent, has been mental
disorder;:o'fsa.it\$::h an extent

as to unfit, :'->for'-' marriage and the

.ii"pi*o.c.reati;or}i"--of~.V,çnildrer.i;i-"or (c) has been

subject to recurrent attacks of insanity.

The bridegroom, n"--..h'as. completed the age of

V twenty-one year's and the bride the age of
V. E__,eighteen years at the time of the marriage;
(iy),_r_vAthre.:p~arties are not within the degrees of

relationship, unless the custom

governing each of them permits of

marriage between the two;
the parties are not sapindas of each other,

unless the custom or usage governing each
of them permits of a marriage between the

two;

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11. Now in order to attract Clause (i) of Section 5 of the

Hindu Marriage Act, the burden is on the appellant he: '«ei"n;"'to

show that the respondent had a living spouse on the

marriage solemnized between the appellant»..and{they"reSpon.dent._V it

Admittedly, the appellant was a widower and

the appellant to show that as the -it

respondent had a living spouse. to "p-rovexithe said
contention, the appellant has "riot'~p_lé\$cedfiV"a'ijyV:lmaterial to show
the marriage alleged .__to between the

respondent and or a_ of Palayad. No

evidence is that the marriage was solemnized and Venkateshgowda and that the said marriage is in existence and that out of the said respondent had a child which died later.

The absence of any material placed by the appellant,

-- VL'---c.Iause;(i_)rofVSeetion-5 has no application to the facts of the

Then coming to clause (iv) of Section-5 is concerned, the

is also not applicable because the said clause deals with

. 'V:..iprpV'hibited degree. The parties herein are not relatives. They

'd._ofnot fail under the category of prohibited relatives. Therefore

r"S/

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the said clause is also not applicable. Then the last clause is

with regard to clause (v) of Section-5. Even the said clause is

no application since they are not relatives and they

different communities and they belong to different states; ~"fhe'i"e.y if

what remains is whether out of the marriage. A_ 'it'heifrnaiiriage'V.i_i:"w:a's:y

solemnized and got it registered 'So this " if

point is concerned, when the fraud 'threat "o*rv...coercion or undue influence is stated by the 'ap. peiian't', ee.V:thVe'»»burden is heavy on him. But unfortunately not Vn'la~t;er.iai.V:'vevidence'is placed before

the Court to show 'th__at...u';Vnd'er_.wh.at'-circumstances the marriage

was got registered. VtieVti\$queen">t.he apupéiizant and respondent on 30.9.2002 in. Et«he gayestsgwiithed Sub-Registrar, i<.R. Pet. Admittedly, _Vthe'ia'p0ei!~an=t Nair by community and he is from Kjer.a\$.aT R-esp.Q.ndeVnt"*i's"from K.R. Pet and she belongs to

Vokk._ai'i'ga" It is a fact that the appellant is a retired

-- "»....d.efence.__persQnn:e_i*i::and he is getting pension and he is also

...i.i';jru.ni:.i,ng an "oii":.rni|i at Kerala. It has come in the evidence that
4:~-.:Vth.eV"res.p»ot\$_dent was working under the appellant on daiiy wages
' Foii mill. The case of the appeilant is that the appeilant
pity on the respondent in order to provide some
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financial assistance, in his pension papers has shown".the
respondent as his nominee by declaring her as his wife._.4'_'»Eveny'if..A
the said averments are considered to be true for:"t.tieTf5ail'<4ei Toff
arguments, still the appellant has not ezyrplalined iolnliyg
of processing the pension papers of him"---torgive gb.e;n'e'fit toi
respondent, what made the appeIIan't.:VV:.tc com'e.al'irtvlieéw way from
Kerala to K.R. Pet and stay ii4n'w~i_K.RjlV.'\$:etVt*:i:r_i:VaVi"lodgeandxlater get
the marriage registered by before the
Sub~Registrar Officfea't,g:r1'K.R.:r._ Vif'-t'i'ive....»\$i3i3eliant had been
abducted by would not have
kept the in the evidence that
he stayed and there is an access to the
public since the said_:'|odgelAi'ss inffront of bus stand and he did not
an";,r.: 'att.e:mptAtoflescape from the lodge and even he did not
lodge. 'aV«.rl_cof-dblrairnvtaeijther before the Police or before the Sub»
VL"--'Registrar_at the of signing the papers. Therefore it is
that t'ii.e_A'3~parties voluntarily have subrnitted the papers for
4'*--.V.Vre.g'istratioA'n of their marriage before the Sub~Registrar, KR. Pet
.':"lo'n::H3Qi9.2€)02. Now having submitted the papers for
°:._:"registration and having lived with the respondent, it is difficult
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13

for any Court to believe that the respondent who is a ladfx»/?"*and

who was staying in Kerala abducted the appellant to
Mandya district and by using undue influence and coercion got
the marriage certificate at K.R. Pet. Trgierelfolree
justified in disbelieving the theory of coercion. 'Yça'nv'dA'
influence. As stated earlier, the
appellant. The appellant material to show
that the marriage certificate on account of
coercion or threat. : " ' not see any
merit in this the "appeal is dismissed.

Parties to bear

Sdfg
Judge

.....

judge G55/,